Chinese Exclusion Act

47th Congress · approved May 6, 1882

Source: Chinese Exclusion Act (May 6, 1882), text via the U.S. National Archives, Milestone Documents. Public domain.

The Chinese Exclusion Act was the first U.S. federal law to bar an entire ethnic group from immigration. Chinese laborers had been recruited heavily in the 1860s — especially for the Central Pacific Railroad — but anti-Chinese agitation in California, intensified by the 1873–79 depression, pushed Congress to act. The 1882 act was renewed and expanded for decades, finally being repealed in 1943 during WWII (when China was a U.S. ally).

Connect: The nativism of the 1880s echoes the Know-Nothing movement (Class 14). How is anti-Chinese sentiment in 1882 similar to anti-Irish sentiment in 1854 — and how is it different?

Key Passages

Preamble and Section 1 — the ban

> the coming of Chinese laborers to this country endangers the good order of certain localities within the territory thereof … the coming of Chinese laborers to the United States be, and the same is hereby, suspended; and during such suspension it shall not be lawful for any Chinese laborer to come, or having so come after the expiration of said ninety days to remain within the United States.

Section 12 — removal

> any Chinese person found unlawfully within the United States shall be caused to be removed therefrom to the country from whence he came, by direction of the President of the United States, and at the cost of the United States

Sections 14–15 — citizenship and ‘laborers’

> hereafter no State court or court of the United States shall admit Chinese to citizenship; and all laws in conflict with this act are hereby repealed. SEC.15. That the words “Chinese laborers”, wherever used in this act shall be construed to mean both skilled and unskilled laborers and Chinese employed in mining.

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	Chinese immigration had grown after the Gold Rush and railroad building; Western economic hard times led to anti-Chinese violence and nativism.
Intended Audience *Who was the source written for?*	Immigration officials, Chinese laborers and immigrants, and Western voters and workers who demanded restriction.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	Congress, influenced by Western labor and nativist pressure (such as Denis Kearney's Workingmen's Party); Chinese immigrants had no say.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. DBQ Evidence (1 pt): Use the Chinese Exclusion Act together with 2+ other Gilded Age documents to argue for a thesis about race and labor in the period.
2. Why ‘Chinese laborers’ specifically and not other immigrant groups?
3. Connect this 1882 law to the 1924 Immigration (Johnson-Reed) Act.